

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chris Olmsted	Team: Squad #09	CCRB Case #: 202006126	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 05/30/2020 9:21 PM	Location of Incident: Bowery and East 1st Street	18 Mo. SOL 5/4/2022	Precinct: 09
Date/Time CV Reported Fri, 08/14/2020 2:29 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 08/14/2020 2:29 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. PO Steve Silverstein	19561	959234	SRG 2
3. LT SA Daniel Gallagher	00000	922389	LEG BUR

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jarvis Onabanjo	20933	959010	SRG 1
2. AC Stephen Hughes	00000	874365	PBMS
3. INS Gerard Dowling	00000	915640	SRG
4. POM Erik Fischer	26062	955917	SRG 4
5. LT Adam Mellusi	00000	931825	SRG 2
6. CPT Stephen Spataro	00000	939513	006 PCT
7. PO Vinord Andrew	11378	965927	001 PCT
8. PO Daniel Meblin	08367	964650	001 PCT
9. PO Luigi Tirro	05819	964803	001 PCT
10. PO John Ferguson	09473	966051	103 PCT
11. PO Nicholas Terrett	20643	964314	HWY DST STS
12. PO Steven Holguin	19665	958704	SRG 1
13. PO Nicholas Azzolino	20550	964903	001 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . LT SA Daniel Gallagher	Force: Lieutenant Daniel Gallagher used physical force against § 87(2)(b)	A . Miscellaneous - Subject Retired
B . Officers	Force: Officers struck § 87(2)(b) with batons.	B . Exonerated
C . Officers	Force: Officers restricted § 87(2)(b) breathing.	C . Unfounded
D . PO Steve Silverstein	Force: Police Officer Steve Silverstein used physical force against § 87(2)(b)	D . Substantiated

Case Summary

On August 14, 2020, § 87(2)(b) filed this complaint via telephone with the CCRB.

On May 30, 2020, § 87(2)(b) was part of a large group of protestors who encountered police officers on The Bowery between East Houston Street and East 1st Avenue in Manhattan. Clashes occurred, resulting in this complaint and CCRB complaints 202004096, 202003969, 202003897, and 202102650.

In this case, at approximately 9:21 p.m., Lieutenant Daniel Gallagher of NYPD Legal indicated § 87(2)(b) to PO Vinord Andrew of the 1st Precinct and attempted to take § 87(2)(b) into custody. § 87(2)(b) resisted and Lieutenant Gallagher, assisted by PO Andrew; POs Nicholas Terrett, Luigi Tirro, Daniel Meblin, and Captain Stephen Spataro of the 1st Precinct; PO John Ferguson of the 103rd Precinct; PO Steve Silverstein of SRG 2; POs Jarvis Onabanjo and Steven Holguin of SRG 1; and unidentified officers used physical force and allegedly used baton strikes to arrest § 87(2)(b) (**Allegation A: Force, Miscellaneous – Subject Retired**) (**Allegation B: Force, Exonerated**) During § 87(2)(b) arrest, officers allegedly restricted § 87(2)(b) breathing. (**Allegation C: Force, Unfounded**) During § 87(2)(b) arrest, PO Silverstein knelt on § 87(2)(b) head. (**Allegation D: Force, Substantiated**)

§ 87(2)(b) was arrested during this incident. His top charge was resisting arrest. The district attorney declined to prosecute, and the report was sealed. (Board Review [BR] 01)(BR 02)

Across the relevant investigations, NYPD Legal provided 66 BWC videos and identified 45 negative results for BWC footage related to this incident, including relevant videos from PO Onabanjo (BR 03) and PO Terrett (BR 04). PO Onabanjo's Axon Body 2 camera recorded his video in its default time zone, Zulu, as indicated by the letter 'Z' after the internal timestamp. On May 30, 2020, Zulu time was four hours ahead of Eastern Daylight Time (EDT). PO Terrett's Axon Body 3 recorded his video adjusted to EDT, as indicated by the -0400 after the internal timestamp.

§ 87(2)(b) a civilian witness, provided a civilian video (CV1) with footage material to § 87(2)(b) allegations. (BR 05)

Findings and Recommendations

Allegation (A) Force: Lieutenant Daniel Gallagher used physical force against § 87(2)(b)

Allegation (B) Force: Officers struck § 87(2)(b) with batons.

Allegation (C) Force: Officers restricted § 87(2)(b) breathing.

Allegation (D) Force: Police Officer Steve Silverstein used physical force against § 87(2)(b)

On May 30, 2020, a large group of pedestrians and cyclists marched from the Barclays Center in Brooklyn into Manhattan. The group headed north, turned onto East Houston Street, and turned onto The Bowery, where they encountered multiple details of NYPD officers. Clashes occurred between officers and protestors on the west side of the street and officers ordered civilians on the median and east side of the street, including § 87(2)(b) to disperse. By 9:20 p.m., officers had begun arresting civilians still in the area.

It is undisputed that Lieutenant Gallagher initiated § 87(2)(b) arrest, that § 87(2)(b) resisted arrest, and that officers used physical force during § 87(2)(b) arrest resulting in injuries to § 87(2)(b) nose and right eye.

§ 87(2)(b) alleged that during his arrest an officer punched him several times in the face causing injuries to his nose and the side of his right eye. He stated that officers brought him to the ground and that he tried to stand back up. He felt officers strike him with fists and batons as he tried to stand but he could not describe the officers who took these actions. While he was on the ground, officers "piled" onto him, restricting his ability to breathe. He could not estimate for how long

officers restricted his breathing. He stated he repeatedly said during the incident, “I can’t breathe.” (BR 06)

Civilian video (CV1), beginning at 00:13, shows Lieutenant Gallagher leading a group of officers northbound on the eastern sidewalk of The Bowery and ordering civilians to disperse as he goes. Beginning 00:24, near The Bowery’s intersection with East 1st Avenue, Lieutenant Gallagher points at § 87(2)(b) advances on him, and grabs his shirt. § 87(2)(b) immediately begins telling officers not to touch him, moving his arms, and maneuvering his body away from officers. At 00:29, § 87(2)(b) right eye is visible. He does not have an injury. Lieutenant Gallagher continues to attempt to take § 87(2)(b) into custody, multiple officers join Lieutenant Gallagher, and § 87(2)(b) continues to resist. § 87(2)(b) ends up on the ground, though CV1 does not capture how. Multiple officers appear with their batons out but CV1 does not capture whether officers use baton strikes against § 87(2)(b) CV1 does not capture whether officers pile onto § 87(2)(b) or whether officers restrict § 87(2)(b) breathing. (BR 05)

Beginning at 00:33 in PO Terrett’s BWC recording, PO Terrett arrives at § 87(2)(b) arrest and begins assisting officers in getting control of § 87(2)(b) is surrounded by officers, at least two of whom have batons out. § 87(2)(b) is on the ground but is not yet prone. He is partly on his back and is struggling against officers. § 87(2)(b) right eye socket is bloody. At approximately 00:50, § 87(2)(b) attempts to stand and PO Terrett is jostled to the side. His recording does not capture whether officers strike § 87(2)(b) with batons when § 87(2)(b) attempts to stand. PO Terrett turns back to face the arrest and PO Onabanjo has taken his place interacting with § 87(2)(b) Captain Spataro is also physically interacting with § 87(2)(b) and PO Silverstein is on Captain Spataro’s right side. Beginning at 00:55, PO Silverstein moves from the right side of Captain Spataro around Captain Spataro’s back to his left side, where PO Silverstein kneels down. Beginning at 1:05, § 87(2)(b) is heard stating, “I can’t breathe! I can’t breathe for real!” PO Terrett’s recording does not capture § 87(2)(b) body and what, if any, officer interactions are occurring. (BR 04)

Beginning at 0:48, PO Onabanjo’s relevant BWC recording does capture these details. Officers interact with § 87(2)(b) with their arms. No officer appears to be on top of § 87(2)(b) or putting their body weight on his torso. The video does show beginning at 00:57 that when PO Silverstein moves around Captain Spataro and kneels, he drops his knee onto § 87(2)(b) head. During the video Captain Spataro uses his baton to leverage § 87(2)(b) arm out from under § 87(2)(b) and PO Silverstein has a baton in his hand, but no officer appears to strike § 87(2)(b) with a baton. PO Onabanjo’s recording does not capture the initial moments of § 87(2)(b) arrest, his takedown, or whether officers used baton strikes against § 87(2)(b) when § 87(2)(b) first tried to stand. (BR 03)

Based on the video evidence and § 87(2)(b) testimony, the investigation confirmed § 87(2)(b) allegation that he sustained the injuries to his head during his initial takedown before he attempted to stand up and officers allegedly struck him with batons.

Lieutenant Gallagher retired from the NYPD on July 28, 2020. (BR 07)

PO Silverstein approximated his weight at 250 pounds. (BR 08) He stated he did not recall this incident but agreed that video evidence showed he knelt on § 87(2)(b) head during § 87(2)(b) arrest. PO Silverstein could not explain why he took this action. (BR 09)

On May 30, 2020, Patrol Guide Procedure 211-01 stated, “Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody.” It further states, “In determining whether the use of force is reasonable, members of service should consider the following:

- a. The nature and severity of crime/circumstances,
- b. Actions taken by subject,
- c. Duration of action,
- d. Immediacy of perceived threat or harm to subject, members of the service, and/or

bystanders,

- e. Whether the subject is actively resisting custody,
- f. Whether the subject is attempting to evade arrest by flight,
- g. Number of subjects in comparison to number of MOS,
- h. Size, age, and condition of subject in comparison to MOS,
- i. Subject's violent history, if known,
- j. Presence of hostile crowd or agitators, and/or
- k. Subject apparently under influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence." (BR 10)

Lieutenant Gallagher initiated both the arrest of § 87(2)(b) and the use of force against § 87(2)(b). Therefore, it is recommended that **Allegations A** be closed as **Miscellaneous – Subject Retired**.

§ 87(2)(b) alleged that officers struck him with batons after he was taken to the ground when he tried to stand up. No video evidence captures these moments clearly. However, the investigation confirmed § 87(2)(b) recollection that he sustained his head injuries before he was allegedly struck with batons. § 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **Exonerated**.

§ 87(2)(g) Although video evidence corroborates that § 87(2)(b) alleged during his arrest that he could not breathe, the same video shows that no officers lay upon § 87(2)(b). Therefore, it is recommended that **Allegation C** be closed as **Unfounded**.

PO Silverstein knelt on § 87(2)(b) head during the incident. At the time, § 87(2)(b) already on the ground and at least four other officers were physically engaged in restraining and controlling § 87(2)(b). § 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party. § 87(2)(b)
- Lieutenant Gallagher is retired.
- PO Silverstein has been a member of service for six years and has been a subject in three other CCRB complaints and five allegations, none of which was substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming "loss of liberty, emotional distress, physical injuries, including a fractured nose, damage to reputation, and financial loss including medical bills" and seeking \$1,000,000 as redress. There is no record of a 50H hearing scheduled. (BR 12)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 09

Investigator:	<u>Christopher Olmsted</u>	<u>Investigator Chris Olmsted</u>	<u>02/22/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Monique West</u>	<u>IM Monique West</u>	<u>02/28/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date